
Indigenous Law Institute

Indigenous Law Institute Information

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Introduction

The Indigenous Law Institute assists American Indian and other Indigenous communities to work toward a future of restoration and healing. We do this by working to develop a radically new basis for thinking about Native rights, from a Traditional Native Law perspective, and by contending that Native nations and peoples have an inherent right to live free of all forms of empire and domination.

Mission Statement

The Indigenous Law Institute is dedicated to supporting Indigenous nations and peoples to protect their sacred ancestral homelands, to restore and revitalize their linguistic, cultural, and spiritual traditions, and to heal from the trauma of colonization.

Foundational Summary

Over the course of the past five centuries, the American Indian nations of the Western Hemisphere, and Indigenous nations from other parts of the world (i.e., Aotearoa, Australia, & Hawaii), have been forced to live under imposed patterns of empire and domination. The result has been catastrophically destructive to our lands, our languages and our cultures. It is the intent of our Institute to educate people about the way human realities are socially constructed on the basis of language and culture. Our overall goal is to persuade people to move away from an empire-domination model of existence, and instead to build an existence based on an environmentally appropriate social ecology of healing and restoration. We are working to persuade the dominant society to harmonize its language and culture with the environmental wisdom and understanding of traditional Native thought and culture.

Traditional Native Law

At the time of the so-called Christian European “discovery” of the Indian lands of the Western Hemisphere, our respective Native nations and peoples lived a completely free and independent spiritual way of life, based on the integrity of family, community, and the land. The spiritually based lifestyle of our ancestors was free of deadly poisons in the form of pesticides, herbicides, synthetic organochlorines, and other deadly industrial substances, such as lead in the water our children drink, or radioactive mill-tailings that now blow through the air in the deserts of the Southwest.

While some would say that our ancestors lacked the so-called technological “advancements” to create such things, we assert that such realities, which threaten all life on the planet, are not “advancements” at all. We envision a time when our way of life will once again be guided by Traditional Native Law, so that such poisons will no longer contaminate the land, the waters, and people’s immune systems.

The spiritual, Earth-based lifestyles of our ancestors were in keeping with the original instructions given to them by the Creator, which were handed down for thousands of years through oral tradition. The natural world wisdom and understanding of our ancestors still exists in the languages, ceremonies, and sacred places of our respective nations and peoples. Traditional Native Law is found in the Kanaka Maoli Law of the Native Hawaiians, the Seven Laws of the Lakota, the Twelve Laws of the Shawnee, the Laws of the Kogi, and so forth. But by the word “law” we are actually talking about a conceptual and cultural alternative to the technological and chemically laden culture of empire and domination. The I.L.I. asserts that Traditional Native Law is an essential source of environmental

wisdom and understanding for the planet today. We advocate that traditional Native thought and culture be acknowledged as a necessary basis for our collective existence on Mother Earth.

The Empire-Domination Model

On May 4, 1493, Pope Alexander VI issued a papal document known as the bull *Inter Caetera*. The document, issued at the request of King Ferdinand and Queen Isabella, purported to “give” to the two Catholic monarchs all the lands which Cristobal Colon (Columbus) had “discovered” and any such lands that should be “discovered” in the future. The only limit that the pope placed on his grant was that the Ferdinand and Isabella should not attempt to “take over” lands that had been previously taken over by some other Christian prince. Among other things, the pope stated it to be his desire that non-Christian nations be “subjugated” (militarily overtaken) and made to become Christians. The pope saw the Catholic monarchs as working to spread the “Christian Empire.” “We trust in Him [the Catholic God],” said the pope, “from whom empires, dominations, and all good things proceed.”

The empire-domination model presumes that it is justifiable for an immigrant sovereign (say England, France, Spain, or Portugal) to happen upon a country inhabited by free and independent nations, and then to simply presume “the right” to militarily take over that country by force, and to put the original inhabitants under the foreign rule of the empire-builders. The papal bull is reflective of a language system which presumes that it is permissible for one people to assume a divine right of empire and domination over another people.

George Washington said in 1786, “there will assuredly come a day, when this country will have some weight in the scale of Empires ... [and] as the member of an infant empire ... I cannot help turning my attention to this subject ...” Clearly, when it comes to relating to American Indian nations and peoples, the United States operates strictly on the basis of the empire-domination model. The premise for this model in U.S. federal Indian law is found in the Supreme Court ruling *Johnson v. McIntosh* (8 Wheat., 543, 1823), which the Court based in part on the papal bull of 1493. In that case, Chief Justice John Marshall said that “discovery” of “heathens” by “Christian People” gave the Christians an “ultimate dominion” (right of empire and domination) over the “discovered” Indians. After Christian “discovery”, said Marshall, the Indians peoples’ rights to “complete sovereignty, as independent nations”, were “diminished.” Supposedly, the Indians were left with the mere ‘right’ to occupy their ancestral lands, subject to U.S. dominion.

After having correctly identified U.S. federal Indian law as a language system of domination, the Institute has started working toward developing an entirely different and radically new basis for thinking about the relationship between the United States, and Indian nations and peoples. We do not accept the idea that a judicial pretension based on religious prejudice (*Johnson v. McIntosh*) can legitimately deny the inherent right that Indian nations have to live freely on their ancestral lands, which were given to them by the Creator. In an effort to deal with the foundation of the empire-domination model, we have formally called upon Pope John Paul II to revoke the *Inter Cetera* bull of 1493. We have also invited him to join us on the sacred path by honoring the first principle of Traditional Native Law to “respect the Earth as our Mother, and have a sacred regard for all living things.”

Historical Unresolved Grief Seminars

Having suffered generations of trauma and abuse at the hands of the empire-builders, Native nations and peoples now suffer from a great deal of dysfunctional behavior. Ms. Maria Braveheart-Jordan has identified “historical unresolved grief” counseling as an important step toward the healing and restoration that now needs to occur in our families and communities. Historian David Stannard, in *American Holocaust*, gives some sense of the magnitude of the problem we are talking about:

Within no more than a handful of generations following their first encounters with Europeans, the vast majority of the Western Hemisphere’s native people had been exterminated. The pace and magnitude of their obliteration varied from place to place and from time to time, but for years now historical demographers have been uncovering, in region upon region, post Columbian depopulation rates of

between 90 and 98 percent with such regularity that an overall decline of 95 percent has become a working rule of thumb. What this means is that, on average, for every twenty natives alive at the moment of European contact—when the lands of the Americas teemed with numerous tens of millions of people—only one stood in their place when the bloodbath was over.” (Stannard 1992, “Prologue”, at p. x).

Virtually every Indigenous community carries the scars of generations of trauma due to genocide, colonial abuse, environmental degradation, residential boarding schools, and other dominating policies that have been inflicted on our nations and peoples. At its deepest level, this trauma is a spiritual problem which manifests itself in such symptoms as low self-esteem, high suicide rates, self-abuse through drugs and alcohol, spousal and child abuse, and other tragic difficulties that were virtually unknown prior to Christian European contact.

By holding “Historical Unresolved Grief Seminars”—which include traditional healing methods such as the “wiping of the tears” ceremony and the purification lodge—our people can be assisted to work through and release their grief and pain, and then rechannel that energy in productive ways. Accordingly, we must broadly define the “recovery” process. Defined in this manner, “recovery” does not simply mean no longer engaging in substance abuse. The “recovery process” must also include the active retrieval of our languages, cultures, and traditions, including Traditional Native Law. In this way, we may assist our communities to one day have “recovered” a sovereign spiritual way of life, based on community and environmental health and well-being.

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